Marshall & Dominguez LLP

Pearland, TX
Phone 281-555-1704

Settlement Demand

June 30, 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1057 - Demand for settlement

Dear Claims Representative:

Our office represents Justin Anderson in connection with the rear-end collision that occurred on August 13, 2023, when your insured's vehicle struck the rear of our client's vehicle while it was stopped in traffic. The impact was forceful enough to push our client's car forward and cause immediate pain in the right shoulder and neck. Police were called to the scene, and the responding report reflects the circumstances of the collision.

Following the accident, our client sought medical care and was diagnosed with a torn rotator cuff and soft tissue injuries to the shoulder. Treatment has inculded imaging, physical therapy, and a course of medication. Our client's physician has indicated that further treatment may be required, and the recovery has interfered with daily activities, sleep, and work duties.

Liability in a rear-end collision is generally clear, and we see no basis on which your insured could dispute fault for this loss. We have compiled the medical records, bills, and wage documentation supporting our client's claim, and copies are available upon request.

To resolve this matter without litigation, we demand payment of $220,000.00 within thirty days of the date of this letter. If we do not receive a satisfactory response by that deadline, we will file suit without further notice to your office.

We look forward to your prompt reply.

Expert review: Janet Williams, neurologist

Sincerely,

Kyle Sanders
Marshall & Dominguez LLP